

Mukhtar Washeem v. Rajesh Sharma, Executive Engineer

Allahabad High Court · Single Judge · 22 June 2021 · Contempt Application (Civil) No. 1770 of 2021 · Contempt Application (Civil) No. 1770 of 2021 · **Contempt application dismissed as not pressed; disputed bill not decided.**

HEADNOTE

Civil contempt of a Clause 6.5 liberty order on a disputed electricity bill was not initiated under Section 12 of the Contempt of Courts Act, 1971 where the Executive Engineer recorded that the consumer had not cooperated in permitting meter reading. The application was dismissed as not pressed without deciding the bill, leaving other remedies in law open.

FACTUAL SUMMARY

Mukhtar Washeem sought civil contempt for alleged disobedience of a 24 November 2020 Division Bench order in Writ-C No. 18439 of 2020. That writ, disputing the accuracy of a corporation bill, had been disposed of with liberty to approach the Clause 6.5 authority within fifteen days. The Executive Engineer, Electricity Urban Distribution Division-First, Bareilly, by communication dated 23 March 2021, said the applicant had not cooperated and asked that billing-agency staff be allowed to enter the premises to take a meter reading.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of Clause 6.5 liberty order

HOLDING

Where a writ disputing bill accuracy was disposed of with liberty to approach the Clause 6.5 authority, and the Executive Engineer's communication shows the consumer did not cooperate in allowing billing-agency staff to enter the premises for meter reading, the High Court will not initiate Section 12 contempt for alleged non-compliance of that direction. The contempt application, not pressed, was dismissed without deciding the bill, leaving the consumer to other remedies in law. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill Contempt of a Clause 6.5 liberty order was not initiated where the Executive Engineer recorded the consumer's non-cooperation over meter reading; the application was dismissed as not pressed without deciding the disputed bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE DISPUTED ELECTRICITY BILL AND MERITS OF THE CLAUSE 6.5 REPRESENTATION

Contempt dismissed as not pressed; the Court did not decide the bill. ¶ 1